

TR!FEXTA EXCLUSIVE BEAT LICENSE AGREEMENT

Exclusive Beat License — Draft v1

TRANSACTION DETAILS

Licensor: TR!FEXTA

Licensee: The purchaser identified in the applicable checkout/order record

Beat: The instrumental identified in the applicable checkout/order record (the “Beat”)

License Type: Exclusive License

License Fee: Starting at \$499.00; the binding price is the price specifically quoted and accepted for the applicable Beat

Effective Date: The date payment is successfully completed

Order/License Reference: The applicable Snipcart/order number or other transaction identifier

1. AGREEMENT AND ACCEPTANCE

These terms form a license agreement between TR!FEXTA (“Licensor”) and the purchaser identified in the applicable checkout/order record (“Licensee”). By purchasing the selected license and completing checkout, Licensee acknowledges an opportunity to review these terms and agrees to be bound by them.

Electronic acceptance and the corresponding payment/order record may be used as evidence of the transaction and license granted.

2. GRANT OF LICENSE

Subject to full payment and compliance with this Agreement, Licensor grants Licensee a limited license to use the identified instrumental (the “Beat”) to create one (1) new musical composition or song by adding original vocals, lyrics, melodies, or other original material (the “New Song”).

The license is perpetual for the New Song, subject to the rights, restrictions, and usage limits stated in this Agreement.

3. FILES PROVIDED

Licensee will receive MP3 and WAV versions of the purchased Beat and, when available and expressly included in the sale, stems/trackouts. Project files are not included unless specifically agreed in writing.

4. PERMITTED USES

Licensee receives the exclusive right, after the Effective Date, to commercially exploit one (1) New Song incorporating the Beat within the scope of this Agreement.

Licensee may commercially distribute, monetize, perform, broadcast, and promote the New Song without numerical stream, view, sales, or performance caps.

Licensee may create an unlimited number of music videos and promotional audiovisual works featuring the New Song.

After the Effective Date, Licensor will stop offering new beat licenses for the Beat, subject to prior licenses and any specifically disclosed pre-existing commitments.

5. USAGE LIMITS

There is no contractual numerical cap on streams, music-video views, unit sales, or live performances of the authorized New Song.

Exclusive status applies prospectively. It does not invalidate licenses lawfully granted before the Effective Date.

This Exclusive License does not, by itself, transfer the copyright in the underlying Beat, publishing ownership, songwriter interests, producer royalties, or other ownership interests. Any copyright assignment or different royalty/publishing arrangement must be stated in a separate written agreement expressly identifying the rights transferred.

6. PRODUCER CREDIT

Where credits are customarily displayed or reasonably available, Licensee must credit the producer/licensor substantially as "Prod. by TR!FEXTA" or another producer credit supplied with the Beat.

An accidental or platform-caused omission does not automatically terminate this Agreement if Licensee corrects the credit within a reasonable time after written notice.

7. OWNERSHIP AND COPYRIGHT

Licensor retains all right, title, and interest in and to the Beat and underlying musical material owned by Licensor. This Agreement is a license and is not a copyright assignment unless a separate written agreement expressly states otherwise.

Licensee retains ownership of Licensee's original lyrics, vocals, and independently created contributions to the New Song, subject to Licensor's continuing rights in the Beat.

Nothing in this Agreement permits Licensee to represent that Licensee produced or owns the standalone Beat.

8. CONTENT ID AND AUTOMATED CLAIMING

Unless Licensor gives prior written authorization, Licensee may not register the Beat or New Song in YouTube Content ID, Meta Rights Manager, or another automated audio-fingerprinting system in a manner that generates claims against Licensor or other authorized users of the Beat.

Licensee may use ordinary music distributors and royalty-collection services provided doing so does not improperly claim rights beyond those granted by this Agreement.

9. PROHIBITED USES

Licensee may not resell, redistribute, upload, share, sublicense, give away, or otherwise make the standalone Beat available to another person.

Licensee may not sell or license the Beat as a beat, sample pack, loop, production-library asset, stock-music asset, or substantially similar standalone production asset.

Licensee may not use the Beat in a way that knowingly infringes another person's rights or violates applicable law.

Licensee may not transfer this license without Licensor's prior written consent, except that legitimate distributors and service providers may receive copies solely as necessary to exploit the authorized New Song.

10. PUBLISHING AND ROYALTIES

This Agreement does not transfer Licensor's songwriter, composer, producer, publishing, or other royalty interests, if any, arising from Licensor's contribution to the Beat or New Song.

Any applicable publishing splits, mechanical royalties, performance royalties, producer royalties, or similar rights not expressly waived in writing remain reserved. A separately executed split sheet or written agreement controls the specific splits it addresses.

Licensor does not claim ownership of Licensee's independently created lyrics or vocals merely because they are recorded over the Beat.

11. THIRD-PARTY MATERIAL AND SAMPLES

Neither party may knowingly represent that it owns third-party material it does not own. If the Beat contains third-party material requiring clearance and Licensors are aware of that requirement, Licensors should disclose it to Licensee to the extent reasonably practicable.

Licensee is responsible for clearing third-party material independently added by Licensee. Nothing here grants rights in third-party works beyond rights Licensors are legally able to grant.

12. EXCLUSIVITY AND PRE-EXISTING LICENSES

Following successful payment and the Effective Date, Licensors will cease granting new licenses to the Beat except as required to honor commitments made before the exclusive sale.

Licensee acknowledges that prior non-exclusive licensees may continue exploiting their authorized songs according to their existing agreements. Such pre-existing uses do not breach this Exclusive License.

Licensors will not intentionally grant a new beat license for the Beat after the Exclusive License becomes effective, unless this Agreement is terminated or the parties later agree otherwise in writing.

13. PAYMENT AND REFUNDS

The license becomes effective only after successful payment. Except where required by applicable law or expressly provided by the seller's posted refund policy, completed digital-delivery purchases are generally non-refundable once access to the licensed digital files has been provided.

A chargeback, reversed payment, fraudulent transaction, or payment cancellation may suspend the license until the payment dispute is resolved.

14. BREACH AND TERMINATION

If Licensee materially breaches this Agreement, Licensors may provide written notice describing the breach. Where reasonably curable, Licensee will have fourteen (14) days after notice to cure it.

If a material breach is not cured within that period, or is inherently incapable of cure, Licensors may terminate the license to the extent permitted by law and pursue available remedies.

Termination does not eliminate obligations or liabilities arising before termination.

15. WARRANTIES AND LIABILITY

Each party represents that it has authority to enter into this Agreement. Licensors represent only that Licensors have the right to grant the rights in the Beat expressly granted here, subject to disclosed third-party rights.

To the fullest extent permitted by applicable law, neither party will be liable to the other for indirect, incidental, special, or consequential damages arising solely from this Agreement, except where such a limitation is prohibited by law.

16. INDEMNIFICATION

To the extent permitted by law, each party agrees to be responsible for third-party claims, losses, or reasonable costs arising from that party's own breach of this Agreement, infringement caused by material independently supplied by that party, or unlawful conduct.

17. GOVERNING LAW AND U.S. SALES

This Agreement is intended for online sales to customers throughout the United States. It will be governed by the laws of the Commonwealth of Pennsylvania, without regard to conflict-of-law principles, together with applicable United States federal law.

Nothing in this Agreement waives consumer protections or other rights that applicable law does not permit the parties to waive.

18. GENERAL TERMS

This Agreement, the applicable checkout/order record, and incorporated terms expressly presented at purchase constitute the agreement concerning this license. A later written agreement signed or electronically accepted by both parties may modify these terms.

If any provision is found unenforceable, the remaining provisions remain effective to the fullest extent permitted by law. A failure to enforce a provision on one occasion does not permanently waive it.

19. CONTACT

Questions concerning this license may be directed to TR!FEXTA through the contact information published on trifexta.net or the customer-support address identified in the applicable order materials.

IMPORTANT DRAFT NOTE

Before live commercial use, the formal legal identity of the rights-holding licensor should be inserted, rights ownership for each Beat should be verified, and this agreement should be reviewed by a qualified music/copyright attorney. The terms should also be coordinated with the website Terms of Service, Privacy Policy, refund policy, checkout consent language, and applicable split sheets.